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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV23670

MAYA

KOGAN BY AND THROUGH HER SUCCESSOR-IN-INTEREST, SAMAIL KOGAN, et al. vs

GRANADA HILLS CONVALESCENT HOSPITAL, INC.

August

26, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFFS' MOTION TO COMPEL FURTHER RESPONSES FROM GRANADA HILLS CONVALESCENT

HOSPITAL, INC. DBA GRANADA HILLS CONVALESCENT HOSPITAL TO SPECIAL

INTERROGATORIES, SET TWO.

RULING:

The Court denies the

Motion.

Defendant to give notice.

I.

BACKGROUND

On September 13, 2024, MAYA

KOGAN, SAMAIL KOGAN, IRINA BRANDALIS, and MARINA KOGAN AKOPNIK, (Plaintiffs) filed

a Complaint against GRANADA HILLS CONVALESCENT HOSPITAL, INC. (Defendant),

listing Causes of Action for:

1.

ELDER ABUSE/NEGLECT (Pursuant to Welfare and Institutions Code

§§15657 & 15610.57);

2.

NEGLIGENCE;

3.

VIOLATION OF RESIDENT'S RIGHTS (Pursuant

to Health and Safety Code § 1430); and

4.

WRONGFUL DEATH.

Plaintiffs allege that MAYA

KOGAN (Deceased) was a dependent elder who suffered preventable

injuries, including pulmonary embolism, cerebral edema, anoxic brain

encephalopathy, multiple infections and death, and who Defendant, a skilled

nursing facility, neglected and denied.

On July 28, 2026,

Plaintiff filed the Motion to Compel Defendant's Further Responses to Special

Interrogatories, requesting an Order having the following provisions:

"1.

Send out the letter attached as Exhibit "6" to all responsive witnesses to

Special Interrogatories, Nos. Set Two, Nos. 30 through 35).

2.

Enclose in the letter the response card attached hereto as Exhibit "7" and a

self-addressed stamped envelope for the return.

3.

Submit to the Court and Plaintiff's counsel a declaration under penalty of perjury as to the number of letters sent out seven days after mailing.

4. As to all witnesses who authorize the

dissemination of their information, it is to be provided to Plaintiff's

counsel, in writing and within five days of receipt; and

5. Defense counsel to be ordered not to

contact any of the responsive witnesses unless authorized to do so directly by

the witness or by the written authorization by which Plaintiff's counsel is to

be bound."

(Motion, p. ii.)

Defendant opposes including

based upon medical and contact-information privacy of third parties and

temporal overbreadth and burden.

II.

LEGAL STANDARD

If interrogatory

responses lack specificity, then parties may move to compel further responses

under Code of Civil Procedure section 2030.300, subdivision (a), providing for

motions to compel, where parties deem that an answer is evasive, incomplete, or

inadequate as to specification of documents. (Best Products, Inc. v. Superior Court (2004) 119 Cal.App.4th 1181,

1190.) “While the party propounding interrogatories may have the burden of

filing a motion to compel if it finds the answers it receives unsatisfactory,

the burden of justifying any objection and failure to respond remains at all

times with the party resisting an interrogatory.” (Williams v. Superior

Court (2017) 3 Cal.5th 531, 541.)

Third parties must be

notified (e.g., by letter or e-mail) and given an opportunity to either consent

or object, before discovery responses revealing their private information, and

parties cannot waive such rights of third parties. (Belaire-West Landscape, Inc. v. Superior Court (2007) 149 Cal.App.4th 554,

561-562; DOE 2 v. Superior Court (2005)

132 Cal.App.4th 1504, 1521.)

Courts have discretion as

to methods of notice to third parties, including as to whether to allow third

parties to consent to the discovery, but an overly restrictive approach may be

an abuse of discretion if no serious privacy invasion is implicated. (Pioneer Electronics (USA), Inc. v. Superior

Court (2007) 40 Cal.4th 360, 369-375.) Analogously, decisions have approved

an opt-out procedure for obtaining discovery of private contact information,

but none have opined that the procedure is required. (See, e.g., Lee v. Dynamex, Inc.

(2008) 166 Cal.App.4th 1325, 1338 [“there can be no question the trial court

abused its discretion by denying the motion to compel disclosure of independent

contractor names and addresses through the use of the opt-out procedure

proposed"], disapproved on other grounds by *Noel v. Thrifty Payless, Inc.* (2019) 7 Cal.5th 955, 986; *Crab Addison, Inc. v. Superior Court*

(2008) 169 Cal.App.4th 958, 969-970 [approving an opt-out procedure for

discovery of contact information of potential class members].)

As for use of a third-party administrator to give

notice of privacy rights, cases do not disapprove of it, but it has been error

to require it. (See *Puerto v. Superior*

Court (2008) 158 Cal.App.4th 1242, 1255 ["We cannot imagine that any trial

court would have entered a protective order requiring the plaintiff to use a

third party administrator to send letters...."].) An opinion required use of a

third-party administrator as one means to avoid disclosure of private

information. (See *Los Angeles Gay and*

Lesbian Center v. Superior Court (2011) 194 Cal.App.4th 288, 310-311 ["The

Center's patient list consisting of those persons who were given the wrong

medication and/or received retreatment shall not be disclosed to the named

plaintiffs, their counsel, or any other persons, except it shall be disclosed

to a court-appointed class administrator for the purpose of mailing the notice

.... [N]o class members' name, identifying information, or medical information is

to be disclosed without that class members' prior authorization. Further, the trial court is to take steps to ensure that the names, identifying information, and medical information of the class members are not subject to disclosure under any circumstances in any public proceeding or public filing."].)

Additionally, spans of

time for discovery may be overly broad, depending upon the facts. "An entity's

actions and the intent with which the party engaged in such actions 'may be

inferred from evidence of [its] subsequent conduct,'" (Lopez v. Watchtower

Bible & Tract Soc'y of New York, Inc. (2016) 246 Cal.App.4th 566, 593,

594 ["a 27-year postincident time period for requested documents is unusual....

Absent this tolling period or an equivalent circumstance, it is unlikely that a

similarly time-expansive document production would be upheld."].)

Plaintiff's references to

other trial judges' rulings are unhelpful here. (Motion, p.5.) Trial court rulings are not binding precedent. (E.g., Schachter v. Citigroup, Inc. (2005) 126 Cal.App.4th 726, 738.)

"The rules of court do not permit citation to Superior Court decisions as

authority (Cal. Rules of Court, rule 8.1115(a)),..." (Huff v. Securitas Sec. Servs. USA, Inc. (2018) 23 Cal.App.5th 745,

758, fn. 2.) Rulings in other trial court cases are irrelevant absent some

additional showing like the elements of claim or issue preclusion. (Drummond v. Desmarais (2009) 176

Cal.App.4th 439, 448.)

III.

ANALYSIS

Plaintiffs justify this

discovery Motion to “seek witness names and contact information of patients and

responsible parties of GRANADA HILLS CONVALESCENT HOSPITAL, INC. dba Granada

Hills Convalescent Hospital (“GHCH”). Patients, and responsible parties of the

GHCH are the best possible percipient witnesses to Defendant’s alleged

reckless, fraudulent, oppressive, and/or malicious neglect of its patients.”

(Motion, 1:3-8.) And, at page 8 of the Reply, “Plaintiff proposes using a

third-party administrator (like CPT Group or Gilardi & Co. LLC) with

extensive experience in sending legal notification letters to send the proposed

opt-in letter.” Plaintiff’s Reply also

points out exceptions to HIPAA and CMIA allowing court orders of disclosure.

First, Defendant

counterargues that the Interrogatories are overbroad, vague and burdensome,

because of a two-year period of July 2, 2022 through July 14, 2024, whereas Decedent’s

admission was only two weeks, from July 2, 2023 through July 14, 2023. Second, Defendant

objects to basing the Motion on speculation involving invasions of privacy

rights of hundreds of nonparty patients and their responsible parties who lack

personal knowledge of staffing levels, employees’ qualifications, or the

adequacy of care provided others. Third, Defendant asserts that patient

information disclosure is restricted under HIPAA and CMIA statutes.

“Mere speculation as to

the possibility that some portion of the records might be relevant to some

substantive issue does not suffice” for showing direct relevance as to private

information sought in discovery. (Davis

v. Superior Court (1992) 7 Cal.App.4th 1008, 1017-1020 [directing trial

court to grant motion to quash as to discovery request that was not narrowly

drawn to enable the court to evaluate the appropriate extent of disclosure].

Cf. Bd. of Registered Nursing v. Superior Court (2021) 59 Cal.App. 5th

1011, 1038 [“defendants have not shown that these broad categories are

reasonably calculated to lead to the discovery of admissible evidence.

Moreover, even if these categories do contain some records that would be

discoverable, their probative value is vastly outweighed by the privileged and

private nature of the other records swept up in the production.”].) Absent

showings of direct relevance, compelling need, and unavailability of

alternative sources, a trial court only could find that a privacy interest

prevails. (Ombudsman Services of No. Cal.

v. Superior Court (2007) 154 Cal.App.4th 1233, 1251, disapproved on other grounds by Williams v. Superior Court (2017) 3

Cal.5th 531, 557.)

Addresses and telephone

numbers are private. (Puerto v. Superior

Court (2008) 158 Cal.App.4th 1242, 1254; Lori v. Med. Bd. (2000) 78 Cal.App.4th 462, 468; City of San Jose v. Superior Court

(1999) 74 Cal.App.4th 1008, fn. 5; Planned

Parenthood Golden Gate v. Superior Court (2000) 83 Cal.App.4th 347, 367, disapproved on other grounds by Williams v. Superior Court (2017) 3

Cal.5th 531, 557.)

Patients have a

reasonable expectation of privacy as to their medical information that is not

directly relevant to a particular condition the patient has placed in issue. (California Consumer Health Care Council v.

Kaiser Foundation Health Plan, Inc. (2006) 142 Cal.App.4th 21, 31.)

"[M]edical records are private." (Los

Angeles Gay and Lesbian Center v. Superior Court (2011) 194 Cal.App.4th

288, 308.)

The Confidentiality of

Medical Information Act (CMIA), and the Health Insurance Portability and

Accountability Act of 1996 (HIPAA), allow disclosure of medical information

pursuant to a court order, without patient authorization. (Snibbe v. Superior Court (2014) 224 Cal.App.4th 184, 197-198

[citing Civ. Code, §§ 56.10, subds. (a), (b)(1); and 45 C.F.R. §

164.512(e)(1)(i)].) The Confidentiality of Medical Information Act (CMIA), is

subject to exceptions, including disclosure of medical records required by

court order, or consented to by the patient, and patients' names and addresses.

(See Civ. Code, §§ 56.10, subds. (a), (b) and 56.16.)

The Court finds the

opt-in procedure is not shown to be an acceptable solution under the circumstances.

The Court is concerned about complications including that residents of skilled

nursing facilities commonly have deficits significantly impairing their abilities

to understand and appreciate the consequences of their decisions. (Cf., e.g., *Algo-Heyres*

v. Oxnard Manor LP (2023) 88 Cal.App.5th 1064, 1072; *Algo-Heyres*

v. Oxnard Manor LP (2023) 88 Cal.App.5th 1064, 1071 ["substantial

evidence established that Cornelio lacked the capacity to enter an arbitration

agreement."]. See generally *Elder Abuse In Various Settings*, *Elder Abuse*

Litigation (The Rutter Group 2026), § 8:8 ["Memory Care Units ... are designed

for residents with Alzheimer's disease or other forms of dementia."].) Further,

some medical facility residents may have a representative to make decisions for

them. (Cf., e.g., *Logan v. Country Oaks Partners, LLC* (2024) 82

Cal.App.5th 365, 375 ["authority granted to Harrod in the Advance Directive to

make health care decisions of behalf of Logan, including choosing a skilled

nursing facility, does not extend to executing optional arbitration agreements."];

Alcott Rehab. Hosp. v. Superior Ct. (2001) 93 Cal.App.4th 94, 97 ["After

the stroke, plaintiff's daughter ... became responsible for plaintiff's health

care decisions.”].) Some residents receiving skilled nursing care are likely to have deficits significantly impairing their ability to understand and appreciate the consequences of opting in to discovery and witness participation.

Further, the Court finds

that Plaintiff is speculating that some skilled care nursing residents may provide directly relevant information. (See, e.g., Reply, 5:27-6:3 (“if other patients suffered from neglect and/or abuse occasioned by the conduct alleged of in the Complaint, as a result of the same type of misconduct that caused plaintiff’s injuries, this would tend to show a pattern of misconduct on the part of Defendants,...”).) (Underscoring added.) Therefore the Motion is an unsupported “fishing expedition” for witnesses that unjustifiably involves identifying private contact and medical information and disclosing to a proposed administrator and then to Plaintiff’s counsel, that identified individuals are receiving skilled care nursing.

IV.

CONCLUSION

Therefore, the Court

denies the Motion, for reasons stated.